

25STCV30286 25STCV30286

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Case Number: 25STCV30286 Hearing Date: July 28, 2026 Dept: 732

Monica Cuellar, et al. v. City of Pasadena, et al.

Tuesday, July 28, 2026

CASE NUMBER: 25STCV30286

UNOPPOSED

Defendant City of Pasadena's Demurrer to the First Amended Complaint

Facts: This is an action for employment discrimination. The First Amended Complaint ("FAC") alleges as follows. Plaintiffs Monica Cuellar ("Cuellar") and Keith Gomez ("Gomez") are spouses both employed as officers with the police department of Defendant City of Pasadena. (FAC ¶ 1.) Cuellar was adjutant to Chief Harris, who continually posed probing questions and comments about her sex life, leer at her, stand close to her, and confer favorable treatment on other women officers who engaged with him romantically. (FAC ¶¶ 16–36.) In May 2025, both Cuellar and Gomez applied for a commander position, which was given to a member of an officer association called the Good Ole Boys Club, composed of white men, with whom Chief Harris was close. (FAC ¶¶ 39–46.) After Gomez complained about the selection of a less-qualified candidate, believing himself to be reporting conduct prohibited by state laws forbidding deputy gangs, both he and Cuellar were involuntarily transferred to less-favorable positions. (FAC ¶¶ 47–52.) Plaintiffs then filed formal HR complaints, after which Gomez had his overtime hours cut, and was again transferred to a less desirable position. (FAC ¶¶ 58, 72–80.)

Procedural History: Plaintiffs filed the original complaint on October 16, 2025, and filed the FAC on May 18, 2026, alleging five causes of action:

FEHA Discrimination

FEHA Harassment

FEHA Retaliation

Whistleblower Retaliation

Failure to Take Corrective Action

Defendant City of Pasadena filed the present demurrer on June 22, 2026. No opposition has been filed.

Analysis

DEMURRER

A demurrer should be sustained only where the defects appear on the face of the pleading or are judicially noticed. (Code Civ. Pro., §§ 430.30, et seq.) In particular, as is relevant here, a court should sustain a demurrer if a complaint does not allege facts that are legally sufficient to constitute a cause of action. (See id., § 430.10, subd. (e).) As the Supreme Court held in *Blank v. Kirwan* (1985) 39 Cal.3d 311: “We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law. . . . Further, we give the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (Id. at p. 318; see also *Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 [“A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. [Citation.]”])

“In determining whether the complaint is sufficient as against the demurrer . . . if on consideration of all the facts stated it appears the plaintiff is entitled to any relief at the hands of the court against the defendants the complaint will be held good although the facts may not be clearly stated.” (*Gressley v. Williams* (1961) 193 Cal.App.2d 636, 639.)

“A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (*Khoury v. Maly’s of Cal., Inc.* (1993) 14 Cal.App.4th 612, 616.) Such demurrers “are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (*Mahan v. Charles W. Chan Insurance Agency, Inc.* (2017) 14 Cal.App.5th 841, 848.)

A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment. (*Schifando v. City of Los Angeles*, supra, 31 Cal.4th at p. 1081.) The demurrer also may be sustained without leave to amend where the nature of the defects and previous unsuccessful attempts to plead render it probable plaintiff cannot state a cause of action. (*Krawitz v. Rusch* (1989) 209 Cal.App.3d 957, 967.)

Defendant City of Pasadena (“Defendant”) demurs to each cause of action asserted by Plaintiffs Monica Cuellar and Keith Gomez (“Plaintiffs”) on the following grounds. Defendant argues that Plaintiffs impermissibly join discrimination and harassment under multiple protected characteristics into single causes of action, rendering the complaint uncertain. (Demurrer at pp. 12–13, 14–15.) Defendant argues that no facts are alleged to support a claim for race discrimination or harassment, or a claim by Gomez based on associational discrimination against Cuellar, his wife. (Demurrer at pp. 12–16.) Defendant also argues that Plaintiffs do not allege protected activity for which they suffered retaliation, as their formal HR complaints occurred in December 2024, after which they suffered no adverse employment acts. (Demurrer at pp. 17–19.)

Defendant’s arguments concerning the manner in which the FEHA claims are pleaded is unpersuasive. It cites authority for the proposition that when a “plaintiff seeks relief on various theories which are novel and which require pleading of different facts depending upon the particular theory relied upon to establish a remedy,” the “interests of the orderly administration of justice” suggest the “plaintiff should set forth her separate theories in separate counts to facilitate the adjudication of their validity.” (*Zumbrun v. University of Southern California* (1972) 25 Cal.App.3d 1, 9.) Defendant does not present authority for the proposition that claims for discrimination or harassment under FEHA must be pleaded separately based on each assert protected characteristic upon which the alleged misconduct is based, and the failure to do so here has not prevented

Defendant from making separate arguments directed to each on demurrer.

“To establish a prima facie case for unlawful discrimination, a plaintiff must provide evidence that “(1) he [or she] was a member of a protected class, (2) he [or she] was qualified for the position he [or she] sought or was performing competently in the position he [or she] held, (3) he [or she] suffered an adverse employment action, such as termination, demotion, or denial of an available job, and (4) some other circumstance suggests discriminatory motive.” (Soria v. Univision Radio Los Angeles, Inc. (2016) 5 Cal.App.5th 570, 583–584.)

Defendant argues that no facts are alleged to suggest discriminatory motive based on race, gender, or Gomez’s association with Cuellar. (Demurrer at pp. 12–14.) These arguments fail. While Defendant argues that no facts are alleged concerning race or national origin save that Plaintiffs are Latino (Demurrer at p. 12), the FAC in fact alleges that they were passed over for promotion in favor of a less-qualified white man, who was a member of something called the Good Ole Boys Club, with which the decision-maker, Chief Harris, had close personal ties. (FAC ¶¶ 39–46.) Likewise, Defendant argues that no facts are alleged concerning Chief Harris’ discriminatory animus against Cuellar (or by association against Gomez) on the basis of gender, but concedes the existence of numerous allegations made of Chief Harris’ derogatory and sexual comments about women, including comments made directly to and about Cuellar. (Demurrer at pp. 12–13.) These allegations may be taken as establishing circumstances suggestive of discriminatory motive.

Defendant’s arguments concerning Plaintiffs’ harassment claims are likewise based on the failure to allege discriminatory motive, a failure which is addressed by the same allegations supporting discriminatory intent discussed above. (Demurrer at pp. 14–16.) Defendant argues that it is unclear whether Gomez alleges a claim for gender harassment independent of associational harassment by virtue of his relationship with Cuellar (Demurrer at pp. 16–17.) This argument is answered by Defendant’s acknowledgement that Gomez’s claim “rests on national origin and association, not [his own] gender.” (Demurrer at p. 16.)

The demurrer is therefore properly OVERRULED as to the first and second causes of action, and as to the fifth cause of action for failure to prevent FEHA violations, for which Defendant’s arguments are merely derivative. (Demurrer at p. 21.)

Defendant argues that Plaintiffs’ retaliation claims under FEHA and Labor Code § 1102.5 fail, because the only protected activity alleged concerning them is their December 2024 complaints to human resources, which took place after the adverse employment actions they allege. (Demurrer at pp. 17–21.)

“To establish a prima facie case of retaliation under FEHA, “a plaintiff must show (1) he or she engaged in a ‘protected activity,’ (2) the employer subjected the employee to an adverse employment action, and (3) a causal link existed between the protected activity and the employer’s action.” (Nealy v. City of Santa Monica (2015) 234 Cal.App.4th 359, 380.)

To establish a claim for retaliation under Labor Code § 1102.5, subd. (b), the plaintiff must show (1) that he engaged in protected activity, (2) that the defendant subjected the plaintiff to an adverse employment action, and (3) that there exists a “causal link” between the adverse action and the protected activity. (See Manavian v. Department of Justice (2018) 28 Cal.App.5th 1127, 1141.)

Defendant’s arguments do not account for the allegations in the FAC, at least with respect to Plaintiff Gomez. The FAC alleges that, prior to his December 2024 complaint, Gomez complained in July 2024 about the denial of promotion in favor of a white member of the Good Ole Boys Club, and understood himself to be reporting violations of law, including Penal Code § 13510.8, which prohibits deputy gangs. (FAC ¶ 47.) The FAC alleges that Gomez was subject to unfavorable transfer following this complaint. (FAC ¶ 50.) The FAC also alleges further unfavorable transfers and cut overtime for Gomez following his December 2024 complaint (FAC ¶¶ 58, 71, 80.) Thus retaliation is alleged as to Gomez.

However, Defendant’s argument is persuasive concerning Plaintiff Cuellar. The FAC is ambiguous with respect to whether Plaintiff engaged in protected activity or when this occurred in relation to the adverse acts alleged. It is alleged that Cuellar “confronted” Chief Harris regarding his leering at women, but not when. (FAC ¶ 28.) It is alleged that Cuellar complained of

“unwarranted” treatment against one Officer Aguilar, but not what the nature of the complaint was, or whether it included conduct protected under Government Code § 12940, subd. (h) or Labor Code § 1102.5. And while the FAC alleges a definite complaint by Cuellar in December 2024 (FAC ¶ 72), it is not clear from the ensuing allegations whether any adverse employment actions are alleged to have taken place after this event. Finally, although it is alleged that Plaintiff was subject to retaliation following Gomez’s July 2024 complaint, no allegation is made that Defendant believed Cuellar to be implicated in Gomez’s complaint. (See Lab. Code § 1102.5, subd. (b); Steele v. Youthful Offender Parole Bd. (2008) 162 Cal.App.4th 1241, 1254.)

Accordingly, the demurrer is SUSTAINED with leave to amend as to the third and fourth causes of action alleged by Plaintiff Cuellar. The demurrer is otherwise OVERRULED.

Superior Court of California

County of Los Angeles

Department 732

MONICA CUELLAR, et al.,

Plaintiffs

v.

CITY OF PASADENA, et al.,

Defendants.

Case No.: 25STCV30286

Hearing Date: July 28, 2026

[TENTATIVE] RULING RE:

Defendant City of Pasadena’s Demurrer to the First Amended Complaint

Defendant City of Pasadena’s Demurrer to the First Amended Complaint is SUSTAINED with leave to amend as to the fourth and fifth causes of action for FEHA retaliation and Labor Code § 1102.5 retaliation by Plaintiff Monica Cuellar. The demurrer is otherwise OVERRULED. Any amended pleading shall be filed within 20 days of this order.

Plaintiff to give notice.

Dated: July 28, 2026

Hon. Richard S. Kemalyan

Judge of the Superior Court